

Consent for Child Protection Record Check

Note: This form must be completed by any person applying for guardianship of one or more children, and must be provided to the court registry at which the materials in support of that guardianship affidavit have been filed.

Section 1 - Identification of person seeking Child Protection Record Check

First name: _____

Middle name: _____

Last name/Family name: _____

Other names used (include maiden name): _____

Address: _____ City: _____

Province: _____ Postal code: _____ Phone number: _____

Email: _____ Date of birth: _____ Gender: ☐ Male ☐ Female
(mmm/dd/yyyy)

Primary ID (Type and No.): _____

Second ID (Type and No.): _____

Section 2 - Child Protection Record Check

A Child Protection Record Check (CPRC) is a report prepared for the purpose of identifying past and present child protection concerns, if any, under the *Child Family and Community Service Act* (CFCSA) or its predecessor, the *Family, Child Service Act* (FCSA), respecting an applicant for guardianship of a child (the "applicant") under the *Family Law Act* (FLA). A CPRC is prepared by a child welfare worker at the Ministry of Children and Family Development (MCFD) Provincial Office After Hours department. The CPRC includes a search of records respecting the applicant collected under the FCSA and the CFCSA. The search pertains only to the applicant as an adult and does not include records dating back to when the applicant was a child. A CPRC only documents child protection reports that required an investigation or a family assessment and does not include services that may have been provided to the applicant under the CFCSA or FCSA on a voluntary basis.

Check whichever of the following statements is correct and provide any required information.

- ☐ I have not been involved at any time in the past, as an adult or parent, with child protection services.
- ☐ I have been involved in the past, as an adult or as a parent, with child protection services, with my first involvement occurring in _____ (year).

Section 3 - Reason for requesting a CPRC

Section 51(2) of the FLA requires an applicant to provide evidence, in accordance with the Supreme Court Family Rules or the Provincial Court (Family) Rules, respecting the best interests of the child. An applicant must submit a CPRC to the court to assist the court in determining the best interests of the child.

I am applying in the _____ Registry of the ☐ Supreme Court ☐ Provincial Court
under Action No. _____ for the guardianship of:

(Complete for each child for which guardianship is sought. Add an attachment if more space or entries are required)

Name of child	Child's date of birth (mmm/dd/yyyy)	Child's place of residence (check the correct box)
		☐ this child currently resides with me ☐ this child does not currently reside with me but will be coming to live with me

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Section 4 - Possible consequences of a CPRC

A CPRC may result in any of the following:

1. If a CPRC indicates that there is reason to believe that a child who is currently in, or about to come into, the applicant's care may need protection under section 13 of the CFCSA, the child welfare worker conducting the CPRC will make a report to a local child welfare worker for further assessment under the CFCSA.
2. If a CPRC indicates that the applicant currently has an open child protection file, the delegated child welfare worker conducting the CPRC will notify the child welfare worker with conduct of the open file that the applicant is seeking guardianship under the FLA.
3. In response to a CPRC, a judge may order that more CFCSA or FCSA records be provided to the court.
4. In response to a CPRC, a judge may order an assessment of the applicant's ability and willingness to satisfy the needs of the child under section 211 of the FLA.
5. The director of the CFCSA may apply for leave to intervene in the guardianship proceedings under the FLA

Section 5 - Consent

I have read and completed section 1 to 4 and understand what a CPRC will entail, why a CPRC is required for my guardianship application and the possible consequences of a CPRC. I consent to a child welfare worker from MCFD conducting and completing a CPRC for me to submit to the court as evidence in my guardianship application. This consent is valid for 1 year from the date of signature.

Signature

Date (mmm/dd/yyyy)

(The applicant signing this consent must also swear the following declaration if this form is provided to the court registry by a person other than the applicant. The applicant need not swear the following declaration if the applicant personally presents this consent to the court registry and provides the evidence of identity required by the registry staff.)

I swear (or affirm) that I am the person referred to in section 1 of this consent, that the information in sections 1 and 3 of this consent is true and complete and that I have signed section 5 of this consent.

Sworn (or affirmed) before me at _____,
(city)

British Columbia on _____
(mmm/dd/yyyy)

A commissioner for taking affidavits in
British Columbia

(print name or affix stamp of commissioner)

Signature